

Incident Report: Excessive Force; GSP Stop May 5, 2020
Case No.: CN#24CR13237

Complainant:

Name: Austin Tyler Underwood

Address: 362 Strickland Road, Brunswick, GA 31523

Date of Incident: May 5, 2020

Time: Approximately 5:00–6:00 PM

Location: Jekyll Island exit, immediately past the Jekyll Island Toll Plaza, Glynn County, Georgia

Vehicle: Kia Forte (compact sedan)

Officers Involved: Unknown GSP officer (white male, SUV driver, with dash/body camera obscured)

Attorney of Record: Allen Tucker, Esq. | alan@tuckerandbrowning.com | (912) 267-7123

I. INCIDENT SUMMARY

On May 5, 2020, after finishing my second-shift job at Marriott Bonvoy on Jekyll Island, I was unlawfully inter

I immediately stopped, confused and frightened. With food in my mouth from just finishing my shift, I complie

I was not read my Miranda rights, nor was I presented with any justification for the stop or use of force.

II. LEGAL VIOLATIONS ALLEGED

1. Unlawful Arrest (Fourth Amendment Violation)

- No warrant, probable cause, or observable traffic violation justified the stop or arrest.
- See *Terry v. Ohio*, 392 U.S. 1 (1968); *Hiibel v. Sixth Judicial District Court*, 542 U.S. 177 (2004).

2. Excessive Force (Fourth and Fourteenth Amendments)

- The officer used unjustified physical violence in absence of threat or resistance.
- See *Graham v. Connor*, 490 U.S. 386 (1989); *Tennessee v. Garner*, 471 U.S. 1 (1985).

3. Failure to Read Miranda Rights (Fifth Amendment Violation)

- At no point was I informed of my rights prior to or during arrest.

4. Obstruction of Recording Equipment

- Officer's body/dash camera appeared intentionally covered with tape.

5. Negligent and Inhumane Detainment

- I was left lying in an ant pile until backup arrived, further compromising my physical and emotional state.

III. SUPPORTING EVIDENCE

- Witnesses:

- Michael and Freda Underwood (parents): can testify to vehicle recovery and my post-arrest condition.
- Marriott Bonvoy coworkers: may corroborate my shift timing and demeanor prior to the event.

- Injuries Sustained:

- No formal medical evaluation due to financial hardship.
- Ongoing chronic back pain, mobility impairment (dragging myself up stairs), and psychological distress (r

- Evidence of Officer Misconduct:
 - Covered dash/body cam observed during the stop.
 - Denial of Miranda rights.
 - Retaliatory questioning about my “intentions” and views toward police while in custody.
- Records/Documentation:
 - Initial paperwork lost due to illness in household.
 - Vehicle was impounded briefly, but retrieved by my father.

IV. ACTION REQUESTED

I request that:

1. My attorney, Allen Tucker, formally investigate this case and file appropriate complaints with the Georgia I
2. All video, audio, and written reports related to the incident be preserved and released.
3. Legal remedies be pursued for the injuries, trauma, and constitutional violations I have endured.

V. STATEMENT OF HARM

As a working-class citizen, I have suffered physical, emotional, and reputational damage due to this event. I

Respectfully Submitted,
Austin Tyler Underwood